



CHAPTER IV.

An Act to confer further powers on the Tynemouth Gas Company. A.D. 1904.
[24th June 1904.]

WHEREAS by the Tynemouth Gas Act 1867 (hereinafter referred to as "the Act of 1867") the borough of Tynemouth Gas Company which was registered under the Joint Stock Companies Act 1862 and prior to the passing of the Act of 1867 was regulated by a deed of settlement therein recited was dissolved and reincorporated by the name of the Tynemouth Gas Company (hereinafter referred to as "the Company") and was authorised to supply gas to the whole of the parish of Tynemouth in the county of Northumberland :

And whereas by the Act of 1867 the Company was authorised in addition to its then existing capital of thirty-four thousand five hundred and seventy pounds to raise additional capital not exceeding thirty-five thousand four hundred and thirty pounds so as to make in all a capital not exceeding seventy thousand pounds and the Company was also authorised to borrow and have outstanding on mortgage any sum or sums not exceeding in the whole seventeen thousand five hundred pounds :

And whereas by the Tynemouth Gas Act 1897 (hereinafter referred to as "the Act of 1897") the then existing capital of the Company was consolidated and converted into an equivalent amount of one hundred and eighteen thousand seven hundred and forty-two pounds ordinary capital stock entitled to a maximum dividend of five pounds per centum per annum and the Company was authorised to raise additional capital not exceeding seventy-five thousand pounds by the creation and issue of ordinary stock entitled to a maximum dividend of five pounds per centum per annum and to borrow on mortgage in respect of the additional capital by the said Act authorised any sum or sums not exceeding in the whole twenty-five thousand pounds :

A.D. 1904.

And whereas the Company has raised and expended the whole of its share and loan capital :

And whereas the demand for gas within the Company's present limits of supply has increased and is increasing and it is expedient in order to meet such increased demand that the Company's works should be enlarged and extended and that additional capital should be provided for those purposes :

And whereas it is expedient that such further powers should be conferred upon the Company and such further provisions enacted as are contained in this Act :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say) :—

Short title.

1. This Act may be cited as the Tynemouth Gas Act 1904 and this Act and the Act of 1867 and the Act of 1897 may be cited together as the Tynemouth Gas Acts 1867 to 1904.

Incorporation of Acts.

2. The following Acts and parts of Acts are except where expressly varied by this Act incorporated with and form part of this Act (that is to say) :—

The provisions of the Companies Clauses Consolidation Act 1845 with respect to the following matters (namely) :—

The distribution of the capital of the Company into shares ;

The transfer or transmission of shares ;

The payment of subscriptions and the means of enforcing the payment of calls ;

The forfeiture of shares for non-payment of calls ;

The remedies of creditors of the Company against the shareholders ;

The borrowing of money by the Company on mortgage or bond ;

The general meetings of the Company and the exercise of the right of voting by the shareholders ;

The making of dividends ;

The giving of notices ; and

The provision to be made for affording access to the special Act by all parties interested :

Part I. (relating to the cancellation and surrender of shares) A.D. 1904.

Part II. (relating to additional capital) and Part III.
(relating to debenture stock) of the Companies Clauses Act
1863 as amended by subsequent Acts :

The Lands Clauses Acts (except the provisions thereof with
respect to the purchase and taking of lands otherwise than
by agreement and with respect to the entry upon lands
by the promoters) :

The provisions of the Gasworks Clauses Act 1847 with respect
to the amount of profit to be received by the undertakers
when the gasworks are carried on for their benefit but
the provisions of the Gasworks Clauses Act 1871 except so
far as they are incorporated with the Act of 1897 are
not incorporated with this Act and shall not apply to the
Company's undertaking :

Section 13 of the Gasworks Clauses Act 1847 incorporated
with the Act of 1867 and the Act of 1897 shall be read
as if the words "or any premises" were inserted after
the words "private building."

3. In this Act the several words and expressions to which Interpreta-
tion.
meanings are assigned by the Acts wholly or partially incor-
porated herewith shall have the same respective meanings unless
there be something in the subject or context repugnant to such
construction.

4. The Company may from time to time raise additional Power to
Company to
raise addi-
tional capital.
capital not exceeding in the whole one hundred and fifty thousand
pounds by the creation and issue of new ordinary stock or new
preference stock or wholly or partially by one or more of those
modes respectively but no such stock shall vest in the person or
corporation accepting the same unless and until the full price of
such stock including any premium obtained upon the sale thereof
shall have been paid in respect thereof Provided always that not
more than one half of such capital shall be issued as preference
capital Provided also that it shall not be lawful for the Com-
pany to create and issue under the powers of this Act any greater
nominal amount of capital than shall be sufficient to produce
including any premium which may be obtained on the sale
thereof the sum of one hundred and fifty thousand pounds.

5. All stock created under this Act shall be issued in mul- Stock to be
issued in
multiples of
one pound.
tiples of one pound and the Company shall not be required to

A.D. 1904. — register any fractional part of one pound of stock nor any less amount than five pounds.

New capital to form part of capital of Company.

6. The additional capital in new stock so created shall form part of the capital of the Company.

Restriction as to votes in respect of preferential stock.

7. Except as otherwise expressly provided by the resolution creating the same no person shall be entitled to vote in respect of any new stock to which a preferential dividend shall be assigned.

Dividends on new stock.

8. Every person who becomes entitled to new stock in the additional capital created by the Company under this Act shall be entitled to a dividend with the other holders of ordinary stock proportioned to the whole amount of such new stock.

Profits of Company on additional capital limited.

9. The Company shall not in any year pay out of their profits any larger dividend on the additional capital to be raised under the powers of this Act than five pounds in respect of every one hundred pounds actually paid up of such capital whether issued as preference or ordinary capital.

Dividends on each class of ordinary stock to be paid proportionately.

10. In case in any year the funds of the Company applicable to dividend shall be insufficient to pay the full amount of dividend at the prescribed maximum rate on each class of ordinary stock in the capital of the Company a proportionate reduction shall be made in the dividend of each class.

Amount of reserve fund.

11. The prescribed sum for the purpose of section 31 of the Gasworks Clauses Act 1847 shall in respect of the additional capital by this Act authorised to be raised be one tenth of the nominal amount of such additional capital from time to time raised by the Company.

New stock to be offered by auction or tender.

12. Notwithstanding anything in this Act contained the Company shall when stock created under the powers of this Act is to be issued and before offering the same to the holder of any other stock in the Company and whether the ordinary stock of the Company is at a premium or not offer the same for sale by public auction or by tender in such manner at such times and subject to such conditions of sale as the Company shall from time to time determine Provided that—

(1) At any such sale no single lot shall comprise more than one hundred pounds nominal value of stock :

(2) Notice of the amount of the reserved price put upon such stock shall be sent by the Company in a sealed letter to the Board of Trade not less than twenty-four hours

before the day of auction or the last day for the reception of tenders as the case may be and such letter may be opened after such day of auction or last day for the reception of tenders and not sooner: A.D. 1904.

- (3) No priority of tender shall be allowed to any holder of stock in the Company.

13. It shall be one of the conditions of any sale of stock under this Act that the full price thereof including any premium given by the purchaser at such sale shall be paid to the Company within three months after such sale. Purchase money of capital sold to be paid within three months.

14. The intention to sell any such stock by auction or by tender shall be communicated in writing to the town clerk of Tynemouth and to the clerk to the urban district council of Whitley and Monkseaton and to the secretary of the committee of the London Stock Exchange at least twenty-eight days before the day of auction or the last day for the reception of tenders as the case may be and notice of such intention shall be duly advertised once in each of two consecutive weeks in one or more local newspapers circulating within the Company's limits of supply. Notice to be given as to sale &c. of stock.

15. When any stock created under the powers of this Act has been offered for sale by auction or tender and not sold the same shall be offered at the reserved price put upon it for the purpose of sale by auction or tender to the holders of ordinary stock of the Company in manner provided by the Companies Clauses Act 1863 and any stock so offered and not accepted within the time prescribed by the said Act may be disposed of by the directors at a price not less than the reserved price put upon the same for the purpose of sale by auction or tender and any such stock not so disposed of shall again be offered for sale by public auction or by tender in the manner and subject to the provisions of this Act with respect to the sale of stock created under the powers of this Act except that the reserved price put upon such stock may upon such second sale if the directors of the Company think fit be less than the nominal amount thereof and any stock not then sold may be offered to the holders of ordinary stock or disposed of by the directors at not less than the last-mentioned reserved price and so from time to time until the whole of such stock is sold. Disposal of stock not sold by auction or tender.

16. In addition to any sums which the Company are by the recited Acts authorised to borrow they may subject to the provisions Power to borrow.

A.D. 1904. of this Act borrow on mortgage of the undertaking any sum or sums not exceeding in the whole one third part of the additional capital by this Act authorised to be raised and at the time actually issued by stock but no part thereof shall be borrowed until the whole of the stock in such additional capital at the time issued together with the premium (if any) realised on the sale thereof shall have been fully paid up and the Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that such stock and premium (if any) has been issued and fully paid up and upon production to such justice of the books of the Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Repeal of provisions of Act of 1897 with respect to appointment of receiver.

17. The provisions of the Act of 1897 by which the mortgagees of the Company are empowered to enforce payment of principal and interest or principal or interest due on their mortgages by the appointment of a receiver are hereby repealed but without prejudice to any appointment heretofore made or to the continuance of any proceedings which may have been commenced under any such provision previous to the passing of this Act or to any rights of existing mortgagees of the Company at the date of the passing of this Act.

For appointment of receiver.

18. The mortgagees of the Company may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than five thousand pounds in the whole.

Mortgages to have priority over other debts.

19. All money to be borrowed by the Company on mortgage or debenture stock under this Act shall have priority against the Company and the property from time to time of the Company over all other claims on account of any debts incurred or engagements entered into by the Company after the passing of this Act Provided always that this priority shall not prejudice or affect any claim against the Company or their property in respect of any rentcharge granted or to be granted by them in pursuance of the Lands Clauses Acts or in respect of any rent or sum reserved by or payable under any lease granted or made to the Company in pursuance of any Act relating to the Company which is entitled

to rank in priority to or *pari passu* with the interest on their mortgages or debenture stock. A.D. 1904.

20. All mortgages granted by the Company under the powers of the recited Acts before the passing of this Act and subsisting at the passing of this Act shall during the continuance of such mortgages and subject to the provisions of the Acts under which such mortgages were respectively granted have priority over any mortgages granted by virtue of this Act. Existing mortgages to have priority.

21. The Company may create and issue debenture stock subject to the provisions of Part III. of the Companies Clauses Act 1863 and of section 21 of the Act of 1897. Debenture stock.

22. The provisions of this Act with respect to the disposal of new stock by auction or tender shall extend and apply *mutatis mutandis* to all debenture stock created by the Company under this Act. Debenture stock to be sold by auction or tender.

23. All moneys raised under this Act whether by stock debenture stock or borrowing shall be applied to the general purposes of the Company being in all cases purposes to which capital is properly applicable. Application of moneys.

24. The directors may in any year without calling a meeting of the shareholders for the purpose declare an interim half-yearly dividend on any class or classes of stock in the capital of the Company out of the then ascertained profits of the Company Provided that the amount of any interim half-yearly dividend so declared shall not exceed in any one half-year one half of the amount of the maximum yearly dividend payable on such stock or stocks respectively. Interim dividend.

25. The directors may close the register of transfers for a period not exceeding fourteen days previous to the declaration of any interim dividend and they may fix a day for closing the same of which seven days' notice shall be given by advertisement in a newspaper published within the Company's limits of supply and any transfer made during the time when the transfer books are so closed shall as between the Company and the person claiming under the same but not otherwise be considered as made subsequently to the declaration of any such dividend. Closing of transfer books previous to declaring interim dividend.

26. Subject to the provisions of this Act the Company may upon the land described in the Schedule to this Act erect maintain alter improve enlarge extend and renew or discontinue gasworks Powers as to construction of gasworks.

A.D. 1904. retorts gasometers receivers drains sewers mains pipes meters lamps lamp-posts burners stop-cocks machinery and other works and apparatus and conveniences and may do all such acts as they may think proper for making storing and supplying gas.

Power to lay pipes in streets not dedicated to public use.

27. The Company may upon the application of the owner or occupier of any premises abutting on or being erected in any street or road laid out but not dedicated to public use and within the Company's limits of supply as extended by this Act supply such premises with gas and may lay and from time to time take up alter relay or renew in across or along such street or road such pipes as may be requisite or proper for the furnishing of such supply and the provisions of the Gasworks Clauses Act 1847 with respect to the breaking up of streets for the purpose of laying pipes and for the protection of pipes when laid so far as they are applicable for the purposes of this section shall extend and apply mutatis mutandis to and for the purposes thereof.

Power to purchase lands by agreement.

28. The Company may for the purposes of their undertaking purchase take and hold (by agreement but not otherwise) in addition to any other lands which they are by this Act or the recited Acts authorised to acquire any lands and hereditaments not exceeding in the whole sixteen acres which the Company may require for the purposes of their works and undertaking but the Company shall not create or permit a nuisance on any such lands and no lands shall be used by the Company for the purpose of manufacturing gas or residual products except the lands described in the Schedules to this Act and the Act of 1867.

Price to be charged for gas within Whitley and Monkseaton.

29. Notwithstanding anything contained in section 31 of the Act of 1897 from and after the thirtieth day of June one thousand nine hundred and four the price charged by the Company for gas supplied by them within the urban district of Whitley and Monkseaton shall be the same as for gas supplied by them within the borough of Tynemouth and be subject to the same discounts for prompt payment.

Altering maximum price of gas.

30. Notwithstanding anything contained in section 31 of the Act of 1897 from and after the thirtieth day of September next after the passing of this Act the maximum price to be charged by the Company for gas supplied by them within the borough of Tynemouth and the urban district of Whitley and Monkseaton shall be three shillings per one thousand cubic feet.

As to quality and testing of gas.

31. From and after the thirtieth day of September one thousand nine hundred and four section 35 of the Act of 1897

shall be read and construed as if the word "fourteen" had been inserted therein instead of "sixteen" and in making tests for illuminating power the gas shall be tested with the same apparatus and by the same method as may for the time being be prescribed for the testing of the illuminating power of gas in the metropolis for which the prescribed number of candles is fourteen. A.D. 1904.

The gas shall be so far free from sulphuretted hydrogen as not to discolour moistened test paper imbued with acetate of lead when such test paper is exposed for one minute to a current of gas issuing at the rate of five cubic feet per hour.

In the event of the gas examiner finding any defect of illuminating power or any impurity in the gas he shall forthwith give notice thereof to the Company at their offices.

No change shall be made in the composition of the gas and no enrichment of the gas shall take place after the gas leaves the gasholder.

32. The Company shall at any time within two years after the thirtieth day of September one thousand nine hundred and four if and when required by any consumers of the gas supplied by the Company other than consumers by slot meters supply to them and fix free of charge a sufficient number of burners suitable in all respects for the consumption of gas of the illuminating power prescribed by this Act. The Company shall also as soon as reasonably practicable after the said thirtieth day of September one thousand nine hundred and four and at the latest within the period of twelve months thereafter exchange the burners used by consumers of gas supplied by the Company by means of slot meters for burners similarly suitable for the consumption of gas of the illuminating power prescribed by this Act. Company to supply suitable burners gratis in lieu of those in use.

Notice of the provisions of this section shall be given on each demand note of the Company sent out during the said period.

33. Section 52 of the Act of 1867 shall be read and have effect as if the words "or any public lamp" and "or public lamp" were omitted therefrom. Amendment of section 52 of Act of 1867.

34. Notwithstanding anything contained in sections 39 and 40 of the Act of 1897 the Company shall not be required to provide free of charge any main or service pipe or stop-cock for the lighting of any public lamp in the borough of Tynemouth or in the urban district of Whitley and Monkseaton which is situate at a greater distance than seventy-five yards from an existing main or service pipe of the Company. Amendment of sections 39 and 40 of Act of 1897.

A.D. 1904.

As to construction and placing of pipes &c. between mains and meters.

35. In order to enable the Company to ensure a satisfactory supply of gas to their consumers the following provisions shall have effect:—

- (1) The Company may specify the size and material of the pipes with the fittings thereof which are to be laid by the consumer either in the first instance or on the occasion of any renewal between the Company's mains and the meter and (so far as the same are intended to be covered over) on the consumer's premises:
- (2) The Company may if they think fit make different specifications for different classes of premises having regard to the probable maximum consumption of gas thereon at any one time:
- (3) The specification shall be published twice in some newspaper or once in each of two newspapers circulating within the limits of supply and a copy thereof shall be kept exhibited in the office of the Company:
- (4) Every meter to be used in a new building or in a building not previously supplied with gas or in connection with a new or substituted pipe laid by the consumer between the main and the consumer's meter shall be placed as near as reasonably practicable to the Company's main but within the outside wall of the building:
- (5) When any such meter or pipe as aforesaid has been laid or placed notice thereof shall be given to the Company and the pipe shall not be covered over until after the expiration of twenty-four hours from the service of such notice on the Company. Any officer of the Company duly appointed may between nine o'clock in the morning and five o'clock in the afternoon attend and inspect such pipes (with their fittings) and meter and if the officer is not permitted to make the inspection or if the pipes or fittings are not according to the Company's specification or if the meter is not placed as required by this section the Company may refuse to supply gas to the premises until the provisions of this section have been complied with:
- (6) Any person to whom the Company refuses a supply of gas under the provisions of this section may appeal to a petty sessional court against such refusal and the court may after hearing the parties and considering any questions as to the reasonableness of the Company's

specification make such order as seems to them proper in the circumstances and may order by which of the parties the costs of and incident to the appeal shall be paid. A.D. 1904.

36. No gas stoves or ranges engines or machines worked by means of gas or fittings or apparatus used in connection therewith let for hire by the Company shall be subject to distress or to the landlord's remedy for rent or be liable to be taken in execution under any process of any court or any proceedings in bankruptcy against the persons in whose possession the same may be. Provided that such articles or things have upon them respectively a distinguishing metal plate affixed to a conspicuous part thereof or a distinguishing brand or other mark conspicuously impressed or made thereon sufficiently indicating the Company as the actual owners thereof. Fittings gas stoves &c. let on hire not to be subject to distress.

37. Every consumer of gas supplied by the Company who uses a gas engine shall if required to do so by the Company use an effective anti-fluctuator or other apparatus for controlling and regulating the supply of gas to such engine and shall at all times at his own expense keep such anti-fluctuator or apparatus in proper order and in default of his so doing or keeping such anti-fluctuator or apparatus in proper repair the Company may cease to supply gas to such consumer. The Company shall have access to and be at liberty to take off remove test inspect and replace any such anti-fluctuator or apparatus at all reasonable times such taking off removal testing inspecting and replacing to be done at the expense of the Company if the anti-fluctuator or apparatus be found in proper order but otherwise at the expense of such consumer. Anti-fluc- tuators for gas engines.

38. No penalty shall be incurred by the Company for neglect or refusal to give a supply of gas in accordance with the provisions of the recited Acts and of this Act or for insufficiency of pressure defect of illuminating power or excess of impurity in the gas supplied by them in any case in respect of which the court having cognizance of the case are of opinion that such neglect refusal insufficiency defect or excess was caused by circumstances beyond the control of the Company. Provided that the want of sufficient funds shall not be held to be a circumstance beyond the control of the Company. No penalty in case of unavoidable cause.

39. Proceedings commenced before the first day of January one thousand nine hundred and five for the recovery of any sum Recovery of demands not exceeding 100%.

A.D. 1904. — not exceeding fifty pounds and proceedings taken on and after that date for the recovery of any demand not exceeding one hundred pounds made under the authority of the Act of 1867 the Act of 1897 or this Act or any enactment incorporated therewith respectively whether provision is or is not made for the recovery in any specified court or manner may be taken in the county court.

Costs of Act. **40.** All costs charges and expenses of and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Company.

The SCHEDULE referred to in the foregoing Act.

A piece or parcel of land belonging to the Company and adjoining their existing gasworks situate wholly in the parish of Chirton in the borough of Tynemouth in the county of Northumberland and containing two acres one rood twenty poles or thereabouts being the enclosure numbered 164 in the said parish on the Ordnance map of the county of Northumberland (scale $\frac{1}{2500}$) second edition 1897 and bounded on or towards the north-east by the existing gasworks on or towards the south-east and east by Meadow-well Lane and on or towards the north-west by the enclosure numbered 163 in the said parish on the said Ordnance map.

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